

POLITY 43 - POLITICAL PARTIES

Democratic functions -> legal identity -> symbols -> finance -> accountability -> reform

CONTROL DATE: 8 SEPTEMBER 2026

NO VOLATILE PARTY LIST OR DONATION DATA

STAGE 01

DEMOCRATIC FUNCTION AND PARTY-SYSTEM MAP

- Party = voluntary association seeking public power through elections.
- Functions: aggregate interests -> programme -> candidates -> government/opposition -> accountability.
- Party system counts effective competitors: one-party, two-party, multi-party, dominant and coalition.
- India = competitive multi-party + federalised State variation; dominance is not monopoly.
- Answer line: parties convert social plurality into governable and reviewable choices.

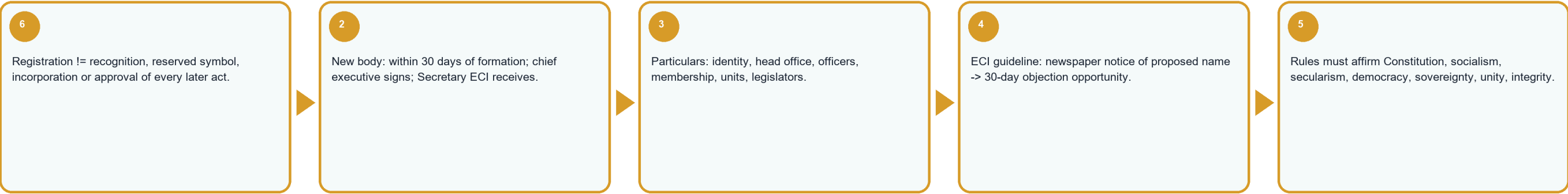
STAGE 02

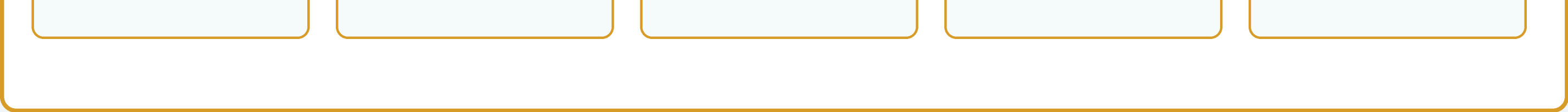
CONSTITUTIONAL AND LEGAL LAYERS

- | | | | |
|-------------|--|--------------|---|
| RULE | Constitution: Tenth Schedule; Arts 102(2)/191(2) disqualification bridges. | LIMIT | Symbols Order 1968: recognition, reserved/free symbols and Paragraph 15 disputes. |
| RULE | Arts 75(1B)/164(1B)/361B: bounded post-defection office bars. | LIMIT | No single comprehensive party law; recognised party is not a constitutional office. |
| RULE | RPA 1951: Sec 29A registration; 29B-29C contributions; Sec 77 expenditure. | | |

STAGE 03

SECTION 29A REGISTRATION





STAGE 04

ENTRY DECISION AND DEREGISTRATION LIMIT

KEY 1

ECI may seek particulars -> reasonable hearing -> register or refuse -> communicate decision.

KEY 2

Material changes after registration must be notified without delay.

KEY 3

INC (I) v Institute of Social Welfare (2002): Section 29A function quasi-judicial.

KEY 4

No general at-will deregistration; narrow fraud/supervening-unlawfulness situations remain.

KEY 5

Internal-democracy failure alone does not create an unenumerated cancellation power.

STAGE 05

RECOGNITION AND SYMBOLS

Recognised party = National or State under performance tests in Symbols Order.

National alternatives: 6% in 4+ States + 4 LS members; 2% LS from 3 States; State party in 4.

State alternatives: 6%+2 MLAs; 6%+1 MP; 3%/3 seats; 1 MP per 25; or 8% valid votes.

Reserved symbol -> recognised-party candidate; free symbol -> other eligible candidates.

Status/list date-sensitive; symbol is electoral entitlement, not private property.

STAGE 06

PARAGRAPH 15, SADIQ ALI AND KANHAIYA LAL OMAR

RULE

Rival groups of recognised party -> ECI identity inquiry under Paragraph 15.

RULE

Sadiq Ali: organisational + legislative majority valuable; no mechanical legislature-only rule.

RULE

ECI decides which group is the party for Symbols Order purposes; symbol cannot be divided.

LIMIT

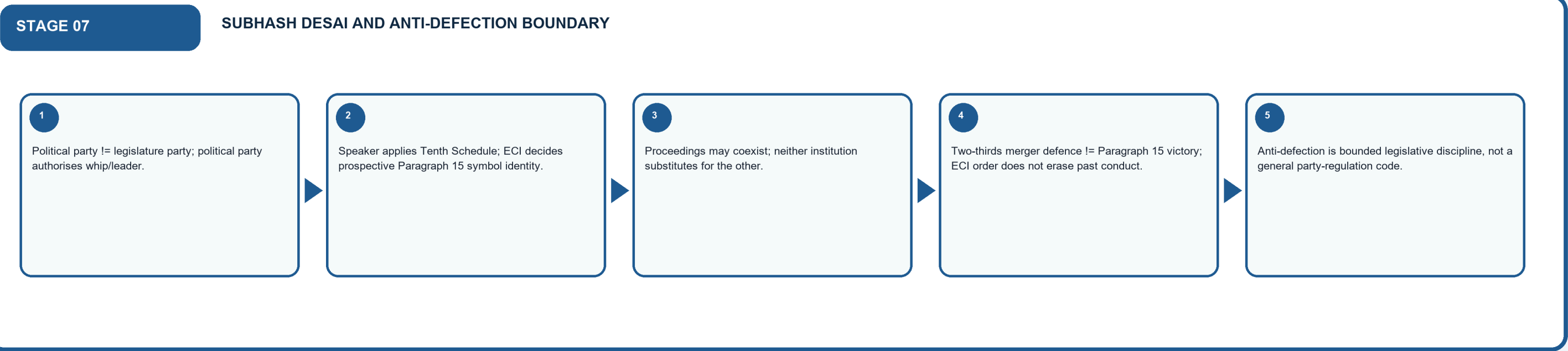
Kanhaiya Lal Omar: Symbols Order valid under Art 324 + Conduct Rules 5 and 10.

LIMIT

Article 324 supplements election law; it does not authorise contradiction of statute.

STAGE 07

SUBHASH DESAI AND ANTI-DEFECTION BOUNDARY



STAGE 08

CONTRIBUTIONS, TAX AND TRUSTS

KEY 1	Sec 29B: voluntary contributions subject to company-law and foreign-source restrictions.
KEY 2	Sec 29C: report each contribution > Rs 20,000 to ECI before tax-return due date.
KEY 3	Non-reporting -> loss of tax relief; threshold is not donation cap or spending ceiling.
KEY 4	Sec 13A: books + donor records + audit + banking/return compliance condition exemption.
KEY 5	Electoral Trusts Scheme 2013: traceable intermediary; >=95% eligible distribution to Sec 29A parties.



STAGE 10

INTERNAL DEMOCRACY, CANDIDATES AND CAMPAIGNS

RULE	Membership rolls -> organisational elections -> leadership -> ticket distribution.	LIMIT	Sec 77: candidate account; notified leaders 40/20; travel exclusion is bounded.
RULE	Risks: high command, dynasty, opaque finance, weak appeals and candidate centralisation.	LIMIT	Paid news, MCC and manifestos operate through different rules; all promises are not corrupt practices.

RULE

Membership rolls -> organisational elections -> leadership -> ticket distribution.

RULE

Risks: high command, dynasty, opaque finance, weak appeals and candidate centralisation.

RULE

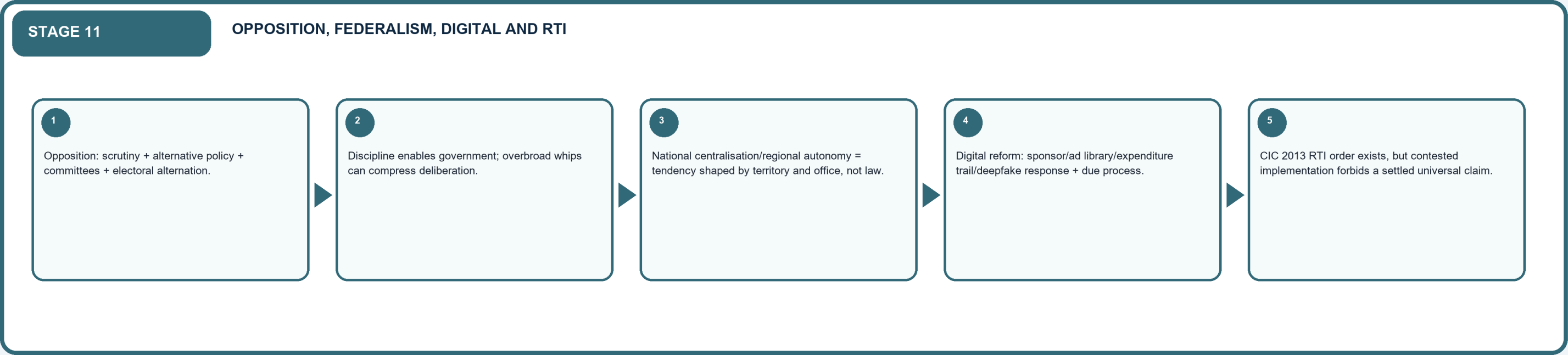
ADR/PUCL affidavits; Rambabu Singh Thakur party publication/reasons; Lily Thomas conviction boundary.

LIMIT

Sec 77: candidate account; notified leaders 40/20; travel exclusion is bounded.

LIMIT

Paid news, MCC and manifestos operate through different rules; all promises are not corrupt practices.



STAGE 12

EXAM FILTER AND REFORM VERDICT

KEY 1

Prelims: Constitution vs RPA vs Symbols Order vs case proposition.

KEY 2

Mains: function -> legal frame -> selected deficit -> evidence -> counter -> reform -> verdict.

KEY 3

Reforms: minimum internal procedure, open finance, graded sanctions, independent appeal.

KEY 4

No volatile lists/data; no invented PYQ/key; proposals remain proposals.

KEY 5

Verdict: regulate parties' public consequences proportionately while protecting political pluralism.

ANSWER SPINE

function -> exact legal source -> named evidence -> mechanism -> qualification -> proportionate reform

VERDICT: regulate public consequences and transparency without extinguishing association, pluralism or dissent.